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Case Number: 26AVCP00100 Hearing Date: July 31, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

PEDRO DANIELS, an individual,

Petitioner,

v.

LITTLEROCK CREEK IRRIGATION DISTRICT, a public entity,

Respondent.

Case Number 26AVCP00100

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 31, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury case. Petitioner Pedro Daniels (Petitioner) petitions the Court for relief from claim presentation requirements.

On April 20, 2026, Petitioner filed the present petition for relief as against Respondent Littlerock Creek Irrigation District (Respondent).

On June 26, 2026, Respondent filed its opposition.

On July 2, 2026, Petitioner filed his reply.

On June 10, 2026, the Court held a status conference, at which it set the petition for hearing on July 31, 2026.

II. Legal Standard

Standard for Relief From Claim Preclusion Requirements – Except as provided in Sections 946.4 and 946.6, a written claim must be presented to a public entity and must be denied or deemed denied before a suit for money or damages may be brought against the public entity on a cause of action for which a claim is required to be presented. (Gov. Code, § 945.4; *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1777.)

If an injured party who has failed to timely file a claim has submitted a written application to the public entity for leave to present such claim and the application has been denied, the injured party may petition to the court for relief from the claim requirements. (Gov. Code § 946.6.)A petition pursuant to Government Code section 946.6 must be “filed within six months after the application to the board is denied or deemed to be denied pursuant to section 911.6.” (Gov. Code, § 946.6, subd. (b); see also *City of Los Angeles v. Superior Court* (1993) 14 Cal.App.4th 621, 627.)

“The court must grant the petition under Government Code section 946.6, subdivision (c) if the claimant demonstrates by a preponderance of the evidence the application to the public entity under Government Code section 911.4 was made within a reasonable time not exceeding one year after the accrual of the cause of action, and one of the other four requirements listed in Government Code section 946.6, subdivision (c) is met.” (*Munoz*, supra, 33 Cal.App.4th at 1777 (emphasis added).) “In determining whether relief is warranted, the court will consider the petition, any affidavits submitted in support of or in opposition to the petition, and any other evidence presented at the hearing.” (*Id* at 1777-78.)

Government Code Section 946.6, subdivision (b) provides in part that the petition must show (1) that application was made to the board under Section 911.4 and was denied or deemed denied, (2) the reason for failure to present the claim within the time limit specified in Section 911.2, and (3) the information required by Section 910. The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect, unless the public entity establishes that it would be prejudiced in the defense of the claim if the Court grants relief to the petitioner. (Gov. Code, § 946.6, subd. (c).)

III. Discussion

Application – Petitioner moves for relief from Government Code section 945.4 to present a claim to Respondent prior to commencing a civil lawsuit pursuant to Government Code section 946.6. (Petition (Pet.), p. 1:22-25.) Petitioner so moves on the grounds that (1) failure to comply was based on mistake, inadvertence, surprise, or excusable neglect (Gov. Code, § 911.6), (2) Petitioner is excused from complying with government claim requirements due to Respondent's failure to comply with the statutory Statement of Information requirements (Gov. Code, § 946.4; *Wilson v. San Francisco Redevelopment Agency* (1977) 19 Cal.3d 555, 560), (3) equitable estoppel, and (4) Respondent with suffer no prejudice (Gov. Code, § 911.6, subd. (b)(1).) (Pet., p. 2:19-27.)

As a preliminary matter, “[f]iling a late-claim application within one year after the accrual of a cause of action is a jurisdictional prerequisite to a claim-relief petition.” (Munoz, supra, 33 Cal.App.4th at 1779.) Here, Petitioner asserts his claim accrued on January 25, 2025. (Daniels Decl., ¶ 3.) The Application for Late Claim and the proposed claim were submitted to Respondent on December 26, 2025. (Ounjian Decl., ¶ 2, Ex. 1.) Therefore, this requirement is satisfied.

a. Mistake, Inadvertence, Surprise, or Excusable Neglect

Petitioner argues his failure to file a timely claim was the result of mistake, inadvertence, surprise, or excusable neglect. (Pet., p. 8:5-7.) Petitioner asserts he diligently pursued his claims for six months following the incident by showing and informing the manager that the water delivery system was defective and dangerous and that he was injured by it, inquiring about the process to obtain compensation, taking and preserving photographs of the water system and the signs installed after his report, calling at least six law firms seeking representation, and promptly presented an application to file a late claim. (Pet., p. 7:22-8:4; Daniels Decl., ¶¶ 6-9, 12-13.)

In opposition, Respondent asserts Petitioner has failed to submit any competent evidence establishing excusable neglect, as he fails to identify the manager he spoke with on the date of the incident by name, title, gender, physical description, or any other identifying characteristic, provides no information regarding the law firms he claims he contacted, and that his ignorance of the requirements for filing a government claim is insufficient to establish excusable neglect. (Opp., p. 4:22-23, 5:4-6, 5:9-9-13.) Respondent further asserts that Petitioner's claim that he informed a manager of the defective condition and the injury he sustained on the date of the incident are directly contradicted by the declarations of James Chaisson and Gina Burroughs, who both unequivocally declare that they never spoke with Petitioner regarding any incident, injury, or request for claim information, that no employees were scheduled to work the Saturday on which the incident occurred, and to their knowledge, no other employees were on site. (Opp., p. 4:23-5:2; Chaisson Decl., ¶¶ 3-4, 8; Burroughs Decl., ¶¶ 5-6, 10.)

“[M]istake of law based solely on ignorance of the six-month claim requirement is not enough. Moreover, a petitioner may not successfully argue excusable neglect when he or she fails to take any action in pursuit of the claim within the six-month period. The claimant must, at a minimum, make a diligent effort to obtain legal counsel within six months after the accrual of the cause of action.” (Munoz, supra, 33 Cal.App.4th at 1778-79.)

Here, Petitioner's mere ignorance of government claims requirements is not a sufficient basis for finding excusable neglect. However, Petitioner has submitted a verified declaration, asserting that in the six months following the incident, he called at least six law firms attempting to retain counsel, all of which declined to represent him. (Daniels Decl., ¶ 12.) Petitioner further asserts that he only retained counsel after the six-month deadline to present a claim had passed after he learned of a similar incident involving the water delivery system, contacted the family of the deceased, and was put in contact with their counsel, Petitioner's present counsel, Carpenter & Zuckerman, who agreed to represent him. (Daniels Decl., ¶ 13, Ounjian Decl., ¶ 4; Pet., p. 6:5-9.)

Petitioner also states that the same day of the incident, he went inside the building adjacent to the water system and spoke with an individual identified to him as a manager, and informed them of the defective condition and his injury, was informed by the individual that Respondent would contact him regarding the process to obtain compensation, and that Respondent never got back to him. (Daniels Decl., ¶¶ 6-9.) Petitioner further asserts that he returned to the site multiple times in the four months following the incident and saw that Respondent had performed multiple repairs on the water system and installed signs warning of high pressure water, which were not present at the time of the incident, indicating that the condition at issue was, at least, investigated by Respondent, and documented not only the scene but the changes made thereto following his reporting of the incident. (Daniels, Decl., ¶¶ 10-11.) This information appears corroborated by photographs attached to

Petitioner's application for presentation of a late claim which were taken on the date of the incident and on dates following the incident. (Ounjian Decl., Ex. 1.)

The parties offer conflicting information regarding the date of the incident and Petitioner's communications with Respondent's staff regarding the existence of the defective condition and his injuries. However, Respondent simultaneously requests that the Court disregard Petitioner's sworn affidavit attesting to his discussion with a manager, stating he has produced no corroborating evidence, while arguing that two sworn affidavits of Chaisson and Burroughs are competent evidence establishing that Petitioner never spoke with a manager, despite the fact that neither of these declarations is accompanied with any corroborating evidence. Respondent offers no reason, nor does the Court find one, for disregarding Petitioner's affidavit as incompetent evidence while accepting the exact same form of evidence from Respondent. The Court must consider sworn affidavits, including Petitioner's, in determining whether to grant relief, and "any doubts which may exist should be resolved in favor of the application." (Munoz, supra, 33 Cal.App.4th at 1777-78; Bettencourt v. Los Rios Community College District (1986) 42 Cal.3d 270, 275; Drummond v. County of Fresno (1987) 193 Cal.App.3d 1406, 1410.) Therefore, the Court declines to resolve these factual disputes raised in the moving, opposition, and reply papers, and resolves the doubts in favor of Petitioner's application. The Court finds that Petitioner has provided sufficient information detailing his diligence in pursuing his claims and that the untimely filing is the result of excusable neglect.

Accordingly, the Court finds that Petitioner has established inadvertence, mistake, surprise, or excusable neglect.

b. Respondent's Compliance with Statement of Information Requirements

Failure to present a claim does not constitute a bar or defense to the maintenance of a suit against the public agency if, during the 70 days immediately following the accrual of the cause of action, either of the following apply: (1) no statement pertaining to the public agency is on file, in the Registry of Public Agencies in the office of the Secretary of State and of the county clerk of each county in which the public agency then maintains an office, as required by Section 53051, or (2) a statement or amended statement pertaining to the public agency is on file, or is placed on file, in the Registry of Public Agencies in the office of the Secretary of State and of the county clerk of each county in which the public agency then maintains an office, but the information contained therein is so inaccurate or incomplete that it does not substantially conform to the requirements of Section 53051. (Goc. Code, § 946.4, subd. (a).)

Petitioner argues that he is excused from compliance pursuant to Government Code section 946.4 for Respondent's failure to substantially comply with the Statement of Information requirements as outlined in Government Code section 53051, subdivision (b). (Pet., p. 9:21-22.) Specifically, Petitioner asserts that on July 15, 2025, his counsel pulled Respondent's only Statement of Information from the Recorder and the County Clerk for Los Angeles County, and the only filed Statement of Information dates from 2002 and names only "Frances Young" as the entity's secretary. (Ounjian Decl., ¶ 5, Ex. 3.) However, upon review of Respondent's website, John Tenerelli now holds the secretary position for the November 2025 through December 2029 term, and Frances Young is no longer on Respondent's board. (Ounjian Decl., ¶ 6, Ex. 4; Pet., p. 9:8-11.) Petitioner further asserts this failure to comply is especially relevant here, as pursuant to Government Code section 915, subdivision (a)(1)-(2), the clerk of an entity is the proper person upon whom to serve a government claim. (Pet., p. 9:16-18.)

In opposition, Respondent argued that Petitioner's evidence is insufficient, as he relies solely on a comparison of Respondent's 2002 Statement of Information and currently displayed information from its website, and that Petitioner's speculation that Respondent failed to file amendments since 2002 is insufficient to establish noncompliance. (Opp., p. 8:12-16.) Respondent further argues that under Black v. Los Angeles County Metropolitan Transportation Authority (2025) 116 Cal.App.5th 677, 698-700, the relevant inquiry is whether Respondent failed to maintain the information required by Government Code section 53051 during the seventy day period following the accrual of Petitioner's cause of action, and that he has presented no evidence addressing compliance during the relevant statutory period. (Opp., p. 8:17-24.)

Pursuant to Government Code sections 53051, subdivision (a)(4) and (b), within 10 days after any change in the name, title, and residence or business address of its clerk or secretary, the entity must file an amended statement containing the information with the Secretary of State.

The Court notes that the relevant period for compliance is the 70 days following the accrual of Petitioner's cause of action. Here, the Court cannot determine based on the evidence presented that Respondent necessarily failed to comply, especially in light of the fact that John Tenerelli has apparently only held the title of secretary commencing in November of 2025, well beyond the 70-day limit. However, Petitioner need not provide evidence of non-compliance, and his allegation of non-compliance is enough to call into question whether Respondent was in substantial compliance.

"On any question of fact arising within the scope of paragraphs (1) and (2) of subdivision (a) [of Government Code section 946.4], the burden of proof is upon the public agency." (Gov. Code, § 946.4, subd. (b) (emphasis added).) Respondent has provided no evidence or proof, in the form of a declaration, documentation, or otherwise, that they have updated the pertinent information in the Statement of Information since 2002. In fact, Respondent does not even claim that they were in substantial compliance with Government Code section 53051, nor that the potentially incorrect information regarding the identification of secretary is insubstantial.

Respondent's reliance on the holding in *Black* does not change this outcome. *Black* reiterated the rule that "a litigant is excused from the GCA's claims presentation requirement 'if, during the 70 days immediately following the accrual of the cause of action... [a] statement or amended statement pertaining to the public agency is on file, or is placed on file, in the Registry of Public Agencies in the office of the Secretary of State and of the county clerk of each county in which the public agency then maintains an office, but the information contained therein is so inaccurate or incomplete that it does not substantially conform to the requirements of Section 53051.'" (§ 946.4, subd. (a); see *Santee v. Santa Clara County Office of Education* (1990) 220 Cal.App.3d 702, 715 ["If a public agency fails to file the pertinent information the claim presentation requirements are eliminated."]).) (*Black*, supra, 116 Cal.App.5th at 696-97.) The *Black* court again stated that "[w]hen a plaintiff alleges a public agency has not complied with the registration requirements, it is the public agency's burden to prove compliance." (*Id* at 697 (emphasis added).)

Respondent is an entity bound by the requirements of Government Code section 53051, Petitioner raised the issue of and presented evidence calling into question Respondent's substantial compliance with the Statement of Information requirements, and Respondent has provided no evidence to establish compliance. Thus, it cannot then avail itself of the Government Claims Act.

Respondent also argues that Petitioner cannot rely on Government Code section 946.4 protection from the requirements, as he actually submitted an application for permission to present a late-filed claim directly to Respondent on December 26, 2025. (Opp. p. 7:27-28.) Respondent relies on *Tubbs v. Southern California Rapid Transit District* (1976) 67 Cal.2d 671 in support. (Opp., p. 8:6-10.) This reliance is misplaced.

As Petitioner notes in his reply, *Tubbs* is materially distinguishable from the present case, and the underlying ruling is not applicable here. (See Reply, p. 4:23-5:9.) In *Tubbs*, the petitioner timely presented a claim to the entity, but failed to file a lawsuit within six months of denial. (*Tubbs*, supra, 67 Cal.2d at 677.) The Court held that "a claimant who has actually presented a claim with the proper public entity may not invoke [Government Code sections 945.5 or 53051] to excuse compliance with the claims statutes and circumvent the special six-month statute of limitations" for filing a lawsuit after denial. (*Id* at 676.)

Here, Petitioner did not actually or timely file a claim with Respondent and then fail to file suit within six months of denial of the claim.. Rather, approximately eleven months after the subject incident, Respondent filed an application to file a late claim. By operation of law, that application was deemed denied 45 days after Respondent failed to take action on it. Petitioner then filed this petition well within six months of that denial, *Stubbs* is not relevant..

Respondent finally argues that Petitioner's reliance on *Wilson* is unavailing, as the *Wilson* petitioner was unable to timely file a complaint in compliance with the Government Claims Act because the agency failed to comply with the statutory registration requirements that were intended to identify the proper officials authorized to receive claims. (Opp., p. 9:7-11.) Respondent contends that by contrast, here, Petitioner knew of Respondent's identity, alleges he personally visited its offices following the incident, ultimately submitted a claim directly to Respondent, and cannot demonstrate any alleged defect in Respondent's filings prevented him from timely presenting a claim. (Opp., p. 9:12-16.)

Respondent's attempt to distinguish Wilson is not persuasive. In Wilson, the Court expressly considered that "section 946.4 contains no requirement of a showing of actual deception or confusion, and [the Court declined] to read such a requirement into the section....public agencies should be induced to comply with section 53051; prejudice resulting from incomplete or incorrect roster information should be presumed to exist, so long as the error or omission is a 'substantial' one." (Wilson, supra, (1977) 19 Cal.3d at 562.) Respondent does not contend that the alleged inaccuracy in its Statement of Information is insubstantial. Further, Petitioner is under no obligation to establish or even assert that this filing defect caused his inability to comply with the Government Claims Act, as such prejudice is presumed to exist, particularly where the appropriate individual on whom such claims to be served apparently was not properly identified in the Statement of Information.

Accordingly, Petitioner has alleged non-compliance and offered sufficient evidence to raise a question of fact as to whether Respondent substantially complied with Government Code section 53051 in the 70 days following the subject incident. Respondent has provided no evidence to establish its compliance. Thus, the Court must find that Petitioner is exempt from the claims requirements on these grounds.

c. Equitable Estoppel

Petitioner argues that Respondent's failure to respond to Petitioner's request for compensation and information related to the process for submitting a claim should estop Respondent from enforcing any requirement that Petitioner submit his claim within the six month period following the incident. (Pet., p. 10:8-10.)

The Court disagrees. As stated above, mere ignorance of the process and requirements for submitting a government claim is not sufficient to establish excusable neglect warranting relief, and Respondent is not placed under any obligation or duty to so inform Petitioner of the process for bringing a claim against it. This responsibility was Petitioner's alone.

Accordingly, the Court does not find that relief is warranted on the basis of equitable estoppel.

d. Prejudice to Respondent in Granting Relief

Petitioner argues that Respondent cannot establish prejudice as it cannot show that specific evidence was previously available and that it is no longer available because of Petitioner's failure to present a timely claim. (Pet., p. 10:17-19.) Petitioner restates that he reported the dangerous condition and his injuries the date of the incident, informed Respondent that he was seeking compensation, and Respondent seemingly examined the dangerous condition as evidenced by the repairs and additional signage in the area within the four months following Petitioner's injury. (Pet., p. 11:8-11.) Petitioner further notes that Respondent retained counsel to address the same issue with respect to another close-in-time occurrence arising in February of 2025. . (Pet., p. 11:11-13.)

In opposition, Respondent argues it has suffered prejudice as a result of the delay. Respondent asserts it has lost the critical opportunity to investigate the property conditions, inspect the site, preserve physical evidence, identify potential witnesses, and create a reliable record. (Opp., p. 6:7-12.) Respondent also asserts it was deprived of the opportunity to review surveillance video that would have recorded the alleged incident, photograph the damage, take measurements, and interview witnesses. (Opp., p. 6:18-22.) Respondent finally asserts that the photographs taken by Petitioner do not provide conclusive evidence of his alleged injuries, the condition of the property, or injuries, and only seem to imply he was present at the site on January 25, 2025. (Opp., p. 6:22-26.)

Respondent is mistaken that Petitioner bears any independent burden of establishing that Respondent will not be prejudiced. (Opp., p. 6:1-2.) The burden is on Respondent. (Moore v. State of California (1984) 157 Cal.App.3d 715, 727 ["to prevail in a proceeding under section 946.6, subdivision (c)(1) the public entity need not carry its burden of proof of prejudice unless and until the plaintiff's burden of showing the initial preconditions of reasonable timeliness and mistake, etc. has been met." (emphasis added)].)

Respondent's argument is analogous to the arguments raised in *Ramariz v. County of Merced* (1987) 194 Cal.App.3d 684. In *Ramariz*, the defendants argued that the "concurrent observations of witnesses and the physical evidence at the time of the accident are vital to the entity's defense in this type of case. A 'dangerous condition' of property at the time of an accident, unlike the transient mechanics of an automobile collision, may exist after the accident. Here [defendants] had no chance to ascertain what existed or to preserve the evidence." (*Ramariz*, supra, 194 Cal.App.3d at 691.) The Court rejected this argument on the grounds that the declarations submitted only show that the defendants had been unable to find any witnesses or any physical evidence which may have contributed to the plaintiff's injury, but made absolutely no showing that any such witness or physical evidence would have been discoverable had the plaintiff timely filed a complaint. (*Ibid.*) The Court ultimately held that whether any such witnesses or physical evidence existed was a matter of pure speculation without any substantial evidence to support a finding of prejudice. (*Ibid.*)

Respondent offers no declaration or any other competent evidence that any efforts have been made to identify, locate, retain, inspect, or interview any witnesses or physical evidence relating to the incident. There is, of course, also no evidence that any such efforts were unsuccessful. Additionally, even if it had so established that efforts were made and failed, there is no evidence that had Petitioner presented a claim within six months, any such witnesses would have been available who are now unavailable due to the untimely presentation, nor that any physical evidence would have been available but has now been made unavailable due to Petitioner's failure to present a timely claim.

Furthermore, in *O'Brien v. City of Santa Monica* (1963) 220 Cal.App.2d 67, the Court held that where a plaintiff filed to timely file a claim within the statutory period, the defendant was not prejudiced because a verified affidavit from plaintiff revealed that on the day of the incident causing injury, the plaintiff informed the defendant of the time, place, and nature of the occurrences which gave rise to her claim, and the defendant knew the details of the accident, that the plaintiff had been injured, and that the plaintiff had a claim against it, providing ample opportunity to investigate the accident and plaintiff's injuries. (*O'Brien*, supra, 220 Cal.App.2d at 75.) The Court reasoned that any undue prejudice to the defendant was a result of its own failure to act, not the late filing of the claim, and because the plaintiff orally gave the defendant sufficient information to constitute a cause of action, it was therefore not precluded from making an effective investigation. (*Ibid.*)

Here, resolving all doubts and factual disputes in Petitioner's favor, as required by law, an employee identified as a manager was informed on the date of the incident of Petitioner's injuries, the manner in which they were caused, where they were caused, when they were caused, and that Petitioner (1) had a claim and (2) intended to pursue it. Thus, under *O'Brien*, Respondent had sufficient information and reasonable opportunity to investigate the conditions of the property and Petitioner's injuries. Its failure to do so is the cause of the undue prejudice, not Petitioner's untimely presentation of his claim. The Court also notes that while Chaisson and Burroughs deny speaking to Petitioner, as Respondent points out, the individual who Petitioner discussed the incident with was not identified by name, gender, physical appearance, or any other identifying characteristic. Even if the Court were to take the denials of Chaisson and Burroughs as true, which it does not for the purposes of this Petition, this does not establish that Petitioner did not discuss the incident with any other individual in a management capacity on the premises the day of the incident.

Respondent's burden of establishing prejudice is also unsatisfied by its assertion that it has lost the ability to review surveillance footage of the incident. Respondent does not provide any evidence that this surveillance footage was lost in any declaration or with any supporting documentary evidence, does not assert how long such footage is kept, provides no evidence of failed recovery efforts, and the Court is unable to determine based on any evidence provided that Petitioner's untimely presentation is the cause of the lost footage.

In *Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, the Court held that the destruction of a vehicle involved in an accident prior to inspection did not result in a finding of prejudice, because the vehicle was destroyed within the statutory period for timely presentation of a claim following the injury, and the defendants would have suffered the exact same prejudice if the claim had been timely presented after the vehicle's destruction. (*Barragan*, supra, 184 Cal.App.4th at 1387.) Here, if the surveillance footage was retained for any amount of time less than six months, Respondent cannot establish that the prejudice suffered is due to Petitioner's untimely filing. The record is silent on this issue.

Respondent's argument of prejudice is especially unavailing in light of the subsequent incident involving the death of Silas Cruz Mendez on Respondent's property. On December 26, 2025, Sarai Cruz Lara, Erika Henriquez, Martha Alicia Cruz Lara, Martina Lara Espinosa, and Donai Cruz filed a complaint against Respondent for the death of Silas Cruz Mendez. (Smith

Decl., ¶ 2, Ex. 1.) The complaint asserts that on February 3, 2025, nine days after the subject incident in this case, Silas Cruz Mendez visited the exact same facility as Petitioner, and due to a dangerous and defective condition with the hose, valve, and related component parts of the exact same water station from which Petitioner asserts he was injured, Silas Cruz Mendez was caused to fall to the ground, suffered grave injuries which exacerbated underlying conditions, and ultimately passed away from the injuries suffered. (Ibid, Ex. 1, ¶¶ 19-20, 22-23, 25.) Most notably, the Mendez Plaintiffs presented their claims to Respondent on July 25, 2025, exactly six months to the day after Petitioner asserts he was injured, and Respondent took no action on the claim. (Ibid, Ex. 1, ¶ 11(a).) Respondent thus had every opportunity to investigate, document, identify witnesses as to the condition of the property, and collect evidence relating to the premises.

Accordingly, for the foregoing reasons, Petitioner's Petition for Relief from Claim Presentation Requirements is GRANTED.

IV. Conclusion

Petitioner Pedro Daniels' Petition for Relief From Claim Presentation Requirements is GRANTED.